

08 DEC -5 AM 10:21

KING COUNTY
COURT CLERK
SEATTLE, WA

**Superior Court of Washington
County of King**

In re the Custody of:

TIMOTHY E. BENNETT, II,

Child(ren),

MELVINA ROBERSON,

Petitioner(s),

and

ZACHARIAH J. BENNETT
and KELLY J. BENNETT,

Respondent(s).

No. 08-3-03956-4SEA

**Order Re Adequate Cause
(Nonparental Custody)**

☐ Denied (ORRACD)

☒ Granted (ORRACG)

Clerk's Action Required

~~(Proposed)~~

I. Basis

1.1 A petition requesting custody of child(ren) be granted to petitioner(s) has been presented to the court.

1.2 A hearing was held on December 5, 2008.

II. Findings

The Court Finds:

2.1 Jurisdiction

This court has jurisdiction over the proceeding and the parties.

2.2 Service on Nonmoving Party

The nonmoving parties were served with a copy of the Nonparental Custody Petition, Summons, Notice of Hearing for Adequate Cause, and Temporary Restraining Order, Order to Show Cause, Case Schedule, as follows:

*Order Re Adequate Cause (Nonparental Custody) 1 of 3
CU2.0400*

O. W. HOLLOWELL & ASSOCIATES
4471 Tolt Ave. P. O. Box 1041
Carnation, Washington 98014
Phone: 425-333-4848 FAX: 425-333-4884

ZACHARIAH J. BENNETT served on May 30, 2008.
KELLY J. BENNETT served on May 29, 2008.

2.3 Time Elapsed Since Service on the Nonmoving Party

More than 20 days have elapsed since the date of service on all nonmoving parties served within the state of Washington; and more than 60 days have elapsed since the date of service on all nonmoving parties served outside the state of Washington; and more than 90 days have elapsed since date of mailing to all nonmoving parties served by mail.

2.4 Adequate Cause Finding

☐ Adequate cause for hearing the petition has not been established.

☒ Adequate cause for hearing the petition has been established by court order after a hearing or by stipulation of all parties.

III. Order

It is Ordered:

☐ The petition is denied and all temporary orders are terminated.

☐ The matter is set for hearing or trial at a date or time to be established.

☐ The matter is set for hearing or trial at:

Date: _____

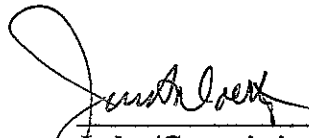
Time: _____ a.m. /p.m.

Place: _____

Room/Department: _____

☒ Other: An Order of Default was entered against the Respondent's on August 12, 2008. Petitioner is entitled to entry of a *Nonparental Custody Decree, Findings Of Fact and Conclusions Of Law and Final Nonparental Custody Order Of Support By Default*.

Dated: December 5 2008



Judge/Commissioner

Order Re Adequate Cause (Nonparental Custody) 2 of 3
CU2.0400

1 Presented by:

2 *O. W. Hollowell*

3 Signature of Party or Lawyer/WSBA No. *9163*

4 *O. W. Hollowell*

5 Print of Type Name

6 *Attorney For Petitioner*

7 Approved by:

8 Signature of Party or Lawyer/WSBA No.

9 Print of Type Name

10 ☐ Approved by Guardian Ad Litem:

11 Signature of Party or Lawyer/WSBA No.

12 Print of Type Name

Approved by:

Signature of Party or Lawyer/WSBA No.

Print of Type Name

Approved by:

Signature of Party or Lawyer/WSBA No.

Print of Type Name